

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 936

Introduced by Ballard, 21.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to health occupations and professions; to
- 2 amend sections 38-1915 and 38-2315, Reissue Revised Statutes of
- 3 Nebraska; to provide for use of fluoroscopy by medical radiographers
- 4 in collaboration with nurse practitioners as prescribed; and to
- 5 repeal the original sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 38-1915, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 38-1915 (1)(a) ~~(1)~~ A person licensed by the department, with the
4 recommendation of the board, as a medical radiographer may practice
5 medical radiography on any part of the human anatomy for interpretation
6 by, and under the direction of, a licensed practitioner, including
7 computed tomography but excluding interpretative fluoroscopic procedures,
8 and may use fluoroscopy in collaboration ~~conjunction~~ with a certified
9 registered nurse anesthetist as authorized in section 38-711.

10 (b) A medical radiographer may also utilize fluoroscopy under the
11 direction of, or in collaboration with, a nurse practitioner pursuant to
12 section 38-2315.

13 (2) An applicant for a license as a medical radiographer shall:

14 (a) Complete an educational program in radiography approved by the
15 board pursuant to subsection (1) of section 38-1918;

16 (b) Complete an application in accordance with the Uniform
17 Credentialing Act; and

18 (c) Successfully complete an examination approved by the board.

19 (3) Presentation of proof of registration in radiography with the
20 American Registry of Radiologic Technologists is proof of meeting the
21 requirements of subdivisions (2)(a) and (c) of this section.

22 **Sec. 2.** Section 38-2315, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 38-2315 (1) A nurse practitioner may provide health care services
25 within specialty areas. A nurse practitioner shall function by
26 establishing collaborative, consultative, and referral networks as
27 appropriate with other health care professionals. Patients who require
28 care beyond the scope of practice of a nurse practitioner shall be
29 referred to an appropriate health care provider.

30 (2) Nurse practitioner practice means health promotion, health
31 supervision, illness prevention and diagnosis, treatment, and management

1 of common health problems and acute and chronic conditions, including:

2 (a) Assessing patients, ordering diagnostic tests and therapeutic
3 treatments, synthesizing and analyzing data, and applying advanced
4 nursing principles;

5 (b) Dispensing, incident to practice only, sample medications which
6 are provided by the manufacturer and are provided at no charge to the
7 patient; and

8 (c) Prescribing therapeutic measures and medications relating to
9 health conditions within the scope of practice.

10 (3) A nurse practitioner who has proof of a current certification
11 from an approved certification program in a psychiatric or mental health
12 specialty may manage the care of patients committed under the Nebraska
13 Mental Health Commitment Act. Patients who require care beyond the scope
14 of practice of a nurse practitioner, who has proof of a current
15 certification from an approved certification program in a psychiatric or
16 mental health specialty, shall be referred to an appropriate health care
17 provider.

18 (4) A nurse practitioner may pronounce death and may complete and
19 sign death certificates and any other forms if such acts are within the
20 scope of practice of the nurse practitioner and are not otherwise
21 prohibited by law.

22 (5) A nurse practitioner may perform and utilize fluoroscopy for
23 procedural guidance and for the performance of authorized duties upon the
24 nurse practitioner's successful completion of appropriate education and
25 training as approved jointly by the department and the board. Such
26 education and training shall be in accordance with rules and regulations
27 adopted and promulgated pursuant to section 71-3508. A nurse practitioner
28 may also direct fluoroscopy in collaboration with a licensed medical
29 radiographer.

30 **Sec. 3.** Original sections 38-1915 and 38-2315, Reissue Revised
31 Statutes of Nebraska, are repealed.